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STATE RECORDS
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DEPARTMENT OF STATE

State of New York

Executive Chamber

No. 65

EXECUTIVE ORDER

DECLARING A DISASTER EMERGENCY IN THE STATE OF NEW YORK DUE TO AN ONGOING MEASLES OUTBREAK

WHEREAS, measles is a highly contagious virus that typically causes high fever, cough, runny nose, conjunctivitis, and rash; spreads through the air when a person with measles breathes or coughs; and infects approximately 90% of non-immune individuals who are exposed to the virus;

WHEREAS, complications of measles are frequent, including pneumonia in approximately 1 out of 20 infected children, encephalitis that can lead to permanent brain damage in approximately 1 out of 1000 people with measles, death in approximately 1 to 3 out of 1000 children with measles, and longer term complications including immune amnesia causing loss of immunity to other diseases to which the person was previously immune and subacute sclerosing panencephalitis leading to central nervous system deterioration and death several years after measles infection;

WHEREAS, measles can be prevented with the measles-mumps-rubella (MMR) vaccine, and the MMR vaccine is the only reliable way to prevent measles;

WHEREAS, as of October 3, 2026, 108 cases of measles have been reported among New York State residents in 2026, including 92 cases reported since July 15 among under-immunized, rural communities in 18 counties;

WHEREAS, the neighboring state of Pennsylvania is experiencing a rapidly progressing measles outbreak with 977 cases and five deaths as of October 2, 2026, in rural counties that border New York State;

WHEREAS, the number of measles cases reported this year has markedly increased beyond the typical number of measles cases reported in New York State, particularly since July 15, and therefore constitutes an issue of significant public health concern;

WHEREAS, local health departments are actively responding to the measles outbreak through surveillance, investigation, contact identification and monitoring, vaccine administration for exposed contacts and high-risk populations, and education and outreach;

WHEREAS, State government must support the municipalities, localities, and counties in their efforts to facilitate and administer vaccinations and tests for measles, and to prevent the disease from continuing to spread;

NOW, THEREFORE, I, Kathy Hochul, Governor of the State of New York, by virtue of the authority vested in me by the Constitution of the State of New York and Section 28 of Article 2-B of the Executive Law, do hereby find that a disaster is imminent for which the affected local governments are unable to respond adequately, and I do hereby declare a State Disaster Emergency, effective October 5, 2026, for the entire State of New York. This Executive Order shall be in effect until November 4, 2026; and

FURTHER, pursuant to Section 29 of Article 2-B of the Executive Law, I direct the implementation of the State Comprehensive Emergency Management Plan and authorize all necessary State agencies to take appropriate action to assist local governments and individuals to provide assistance necessary to protect public health, welfare, and safety.

IN ADDITION, by virtue of the authority vested in me by Section 29-a of Article 2-B of the Executive Law to temporarily suspend or modify any statute, local law, ordinance, order, rule, or regulation, or parts thereof, during a State disaster emergency, if compliance with such statute, local law, ordinance, order, rule, or regulation would prevent, hinder, or delay action necessary to cope with the disaster emergency, I hereby temporarily suspend or modify, for the period from the date of this Executive Order through November 4, 2026, the following:

- Section 112 of the State Finance Law, to the extent consistent with Article V, Section 1 of the State Constitution, and to the extent necessary to add additional work, sites, and time to State contracts or to award emergency contracts;
- Section 163 of the State Finance Law and Article 4-C of the Economic Development Law, to the extent necessary to allow the purchase of necessary commodities, services, technology, and materials without following the standard notice and procurement processes;
- Section 97-G of the State Finance Law, to the extent necessary to purchase food, supplies, services, and equipment or furnish or provide various centralized services to assist affected local governments, individuals, and other non-State entities in responding to and recovering from the disaster emergency;
- Subdivisions 6 and 7 of Section 3001 of the Public Health Law, subdivisions (o) and (p) of Section 800.3, and Section 800.15 of Title 10 of the NYCRR, to the extent necessary to allow certified emergency medical technicians-paramedics and advanced EMS providers to administer MMR vaccinations pursuant to a non-patient specific order, including in non-emergency environments and locations, provided that certified emergency medical technicians-paramedics and advanced EMS providers must first meet conditions set by the Commissioner of Health;
- Section 6951 of the Education Law, and Section 79-5.5 of Title 8 of the NYCRR, insofar as such provisions limit the practice of midwifery to management of normal pregnancies, child birth and postpartum care as well as primary preventive reproductive health care of essentially healthy women, and newborn evaluation, resuscitation and referral for infants, and insofar as such provisions limit the practice of midwifery to midwives who practice in accordance with collaborative relationships with licensed physicians or hospitals, so that, for the purposes of responding to this disaster emergency, midwives may administer MMR vaccinations to any patient pursuant to a non-patient specific order under the medical supervision of licensed physicians, licensed physician assistants, or certified nurse practitioners, provided, however, that a midwife without a certificate issued by the State Education Department for administering immunizing agents must meet conditions set by the Commissioner of Health;
- Subdivision 2 of Section 6801 of the Education Law, subdivision 22 of Section 6802 of the Education Law, and Section 63.9 of Title 8 of the NYCRR, to the extent necessary to allow pharmacists to administer MMR vaccinations to children two years of age and older, pursuant to a non-patient specific order;
- Subdivisions 6 and 7 of Section 6527 of the Education Law, subdivisions 4 and 7 of Section 6909 of the Education Law, and Section 64.7 of Title 8 of the NYCRR, to the extent necessary to permit physicians and certified nurse practitioners to issue a non-patient specific regimen to administer the MMR vaccination to nurses or any such other persons authorized by law or by this executive order to administer MMR vaccinations;
- Subdivision 3 of Section 2168 of the Public Health Law and Section 66-1.2 of Title 10 of the NYCRR, to the extent necessary to suspend the requirement that health care providers, including registered nurses, midwives, certified emergency medical technicians-paramedics, advanced EMS providers and pharmacists, who administer MMR vaccinations to persons 19 years of age or older are required to obtain consent of the vaccinee in order to report such vaccination to the New York State Immunization Information System (NYSIIS) or the Citywide Immunization Registry (CIR), and such provisions are further modified to the extent necessary to require all MMR vaccinations for any individual (child or adult) to be reported to NYSIIS or CIR, as applicable, within 72 hours of administration of an MMR vaccination. Nothing in this paragraph

shall be read to permit the vaccination of any person without their consent or the consent of another person legally authorized to provide such consent;

- Article 139 of the Education Law, Section 576-b of the Public Health Law and Section 58-1.7 of Title 10 of the NYCRR, to the extent necessary to permit registered nurses to (1) order the collection and testing of throat or nasopharyngeal swab specimens and urine specimens from individuals suspected of being infected with measles, for purposes of testing, and (2) order the collection and testing of blood specimens for the diagnosis of acute or past measles; and,
- Subdivision 4 of Section 6909 of the Education Law, subdivision 6 of Section 6527 of the Education Law, and section 64.7 of Title 8 of the NYCRR, to the extent necessary to permit physicians and certified nurse practitioners to issue a non-patient specific regimen to nurses to (1) collect throat or nasopharyngeal swab specimens and urine specimens from individuals suspected of suffering from a measles infection, for purposes of testing, or to perform such other tasks as may be necessary to provide care for individuals diagnosed with or suspected of suffering from a measles infection and (2) collect blood specimens for the diagnosis of acute or past measles.

GIVEN under my hand and the Privy Seal of the State in the City of Albany this 5th day of October in the year two thousand twenty-six.



Kathy Hochul

BY THE GOVERNOR

[Signature]

Secretary to the Governor